

Rajasthan Minerals (Prevention of Illegal Mining, Transportation and Storage) Rules, 2006

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[RAJASTHAN-MINERALS-PREVENTION-OF-ILLEGAL-MINING-TRANSPORTATION-AND-STORAGE-RULES-2006](#) of 2006

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[Rajasthan Minerals \(Prevention of Illegal Mining, Transportation and Storage\) Rules, 2006](#)

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G.S.R. 60. - In exercise of the powers conferred by Section 23-C of the Mines and Minerals (Development and Regulation) Act, 1957, the State Government hereby makes the following rules for prevention of illegal mining, transportation and storage of minerals and for the purposes connected therewith, namely:-

1.

Short title, extent and commencement.

(1)

These rules may be called the Rajasthan Minerals [Prevention of Illegal Mining, Transportation and Storage] Rules, 2006.

(2)

They shall extend to whole of the State of Rajasthan and shall apply to all Major and Minor minerals.

(3)

They shall come into force from the date of their publication in the Rajasthan Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires;

(a)

"Act" means the Mines and Minerals (Development and Regulation) Act, 1951, (Central Act 67 of 1957);

(b)

"Authorized Officer" means Director/Additional Director [Mines]/Superintending Mining Engineer/Superintending Mining Engineer [Vigilance]/Mining Engineer/Mining Engineer [Vigilance]/Assistant Mining Engineer of the Mines and Geology Department for their respective jurisdiction or any other officer authorized in this behalf by the State Government by notification in the Official Gazette;

(c)

"Dealer" means any person who carries on the business by buying, selling, supplying, transporting, storing, distributing or processing of mineral or minerals/ores directly or otherwise for cash or for deferred payment or for commission, remuneration or other valuable consideration or uses mineral/s as an ingredient as a raw material;

(d)

"Department" means department of Mines and Geology, Government of Rajasthan;

(e)

"Director" means Director of Mines and Geology Department, Government of Rajasthan;

(f)

"Form" means a form appended to these rules;

(g)

"Government" means Government of Rajasthan;

(h)

"Mine Owner" in these rules shall have the same meaning as assigned to word "Owner" under the Mines Act 1952;

(i)

"section" means section of the Mines and Minerals (Development and Regulation) Act, 1957;

(j)

"Transit Pass" means pass issued by an authorized officer to the dealer for transportation of mineral;

(k)

"Vehicle" means any mode of transportation or any mechanized device, by which minerals are being transported; and

(l)

"Year" means financial year i.e. from 1st April to 31st March.

(2)

Words and expressions used but not defined in these rules shall have the same meaning as assigned to them under the Mines and Minerals (Development and Regulations) Act, 1957.

3.

Prohibitions.

(1)

No person shall carry on the business by buying, selling, supplying, transporting, storing, distributing or processing of mineral or minerals/ores directly or otherwise for cash or for deferred payment or for commission, remuneration or other valuable consideration or uses mineral/s, as an ingredient as a raw material without being registered as a Dealer under these rules:

Provided that existing dealers may apply for registration, as per procedure laid down in Rule 4 within thirty days from the date of publication of these rules.

(2)

Subject to sub-rules (3) to (5), no person shall transport or carry away any mineral from any place without obtaining a transit pass from the Mining Engineer or Assistant Mining Engineer concerned.

(3)

if any excavated mineral transported from granted mining area, driver or incharge of vehicle shall carry Rawanna duly stamped by the department, in place of Transit Pass.

(4)

If in any particular area and for particular mineral, Excess Royalty Collection Contract [ERCC] or Royalty Collection Contract [RCC] is granted by the Department and contract is in force, the driver or incharge of vehicle shall carry Royalty Receipt duly stamped by the department, in place of Transit Pass.

(5)

In any particular area or for a particular mineral, the Department itself collecting royalty through check-posts and any other system is in force, the driver or incharge of vehicle shall carry Royalty Receipt issued by the incharge of check-post in place of Transit Pass.

4.

Procedure for Registration.

- Every dealer shall get himself registered under these rules by submitting an application in Form No. 1 along with proof of deposit of 100/- (Rupees One Hundred) non-refundable fee, to the respective Mining Engineer or Assistant Mining Engineer of the area.

(2)

On receipt of an application under sub-rule (1), the Mining Engineer or Assistant Mining Engineer shall acknowledge the receipt of the application on the same day and register the person as a dealer within three days from the date of receipt of the application and issue registration certificate in Form No. 2.

(3)

If the applicant is not registered within three days from the date of receipt of the application, he shall be deemed to be registered as a dealer after the period of three days from the date of submitting the application.

(4)

The Mining Engineer or Assistant Mining Engineer shall maintain a register in his office in Form No. 3, wherein he shall make necessary entries about the dealer and its registration.

5.

Transit Pass.

(1)

The persons desiring Transit Pass shall submit an application before the Mining Engineer or Assistant Mining Engineer concerned in Form No. 4 duly specifying all the particulars prescribed therein.

(2)

The application for transit pass shall be accompanied by a copy of the relevant documents and particulars of royalty payment on such mineral.

(3)

On receipt of an application under sub-rule (1), the Mining Engineer or Assistant Mining Engineer concerned may issue duly stamped Transit Pass in Form No. 5, as per requirement of the dealer, within seven days from the date of receipt of the application after verifying the stock at site from the records maintained by the dealer, for such period and subject to such terms and conditions as deemed necessary or may refuse in writing to issue such transit pass, within seven days from the date of receipt of the application, for reasons to be recorded in writing and communicated to the applicant.

(4)

Royalty receipts submitted by an applicant, in lieu of that Transit Passes issued to dealer shall be stamped as "Cancelled, Transit Pass issued" by Mining Engineer or Assistant Mining Engineer.

(5)

Every person who transports the minerals shall carry Transit Pass or Rawanna or Royalty Receipt, as the case may be, with the vehicle and shall produce the same on demand to incharge of check post or authorized officer.

6.

Establishment of check posts, weigh bridges and inspection of Mineral/goods in transit.

(1)

If the State Government, Director, Additional Director (Mines), Superintending Mining Engineer, or Mining Engineer/Assistant Mining Engineer considers it necessary with a view to prevent the illegal mining may, subject to provision of sub-rule (2), establish check post at any place by an order in writing.

(2)

The Assistant Mining Engineer/Mining Engineer, Superintending Mining Engineer, Additional Director (Mines), Director and State Government may order to establish a check post for a period up to 6 months, 12 months, 18 months, 2 years and for a period more than two years respectively.

(3)

The establishment of check post for a period exceeding 2 years shall be notified in the Official Gazette and in other cases, notice at the place of establishment of check post and on the Notice Board of the Office of the concerned Mining Engineer/Assistant Mining Engineer shall suffice.

(4)

An authorized officer or incharge of the Check Post/Naka may check any vehicle carrying the mineral at any place and the owner or the person in charge of the vehicle shall furnish a valid Rawanna/Royalty Receipt/Tranist Pass and other particulars [such as bill etc.], as demanded by the said officer/incharge of the check-post.

(5)

The State Government or Director may establish the weigh bridge or may authorized If any weigh bridge in the area on certain mutually agreeable conditions, to measure the quantity of mineral being transported at any place, by an order in writing.

(6)

At every check post or at any other place when so required by authorized officer, the driver or any other person incharge of the vehicle shall stop the same, get the minerals contained therein weighed, shall pay weighing charges as fixed by the Government from time to time and shall keep the vehicle stationed so long as may reasonably be necessary and allow incharge of the check post or authorized officer as aforesaid, to examine the minerals in transit and also inspect all records relating to the minerals in transit and also inspect all records relating to the minerals in possession of such driver or other person. The driver or incharge of vehicle shall, if so required by the incharge of the check post or authorized officer, shall give his name and address as also that of the owner of the vehicle and the name and address of the consignor and the consignee. After checking the minerals and vehicle, the incharge of the check post or authorized officer shall put his signature on the rawanna/royalty receipt/transit pass so as to avoid any further checking at another check post.

7.

Inspection, Checking and Search.

(1)

An authorized officer may inspect, check and search the minerals at place of excavation or storage or during transit.

(2)

The mine owner or dealer or person incharge of the vehicle, shall produce every record related with mineral as demanded by the authorized officer and provide copy of the document as required by the said officer or allow him to get abstract from the records.

(3)

An authorized officer may for the purposes of these rules, require a mine owner or I dealer to produce before him any accounts, registers and other documents and to furnish any other information relating to mining operations or business related to minerals.

8.

Maintenance of Registers, Boundary Pillars and Boards.

(1)

Every mine owner shall keep a copy of agreement of lease or license along with map etc. at site duly attested by Mining Engineer/Assistant Mining Engineer having jurisdiction over the area.

(2)

Every mine owner or dealer shall maintain sign boards at clearly visible location, with particulars of their dealing in minerals and of size and shape and details therein, as specified by the Mining Engineer/Assistant Mining Engineer concern and every time keep in good condition.

(3)

Every mine owner shall maintain boundary pillars of the sanctioned area, of size and shape as specified by the Mining Engineer/Assistant Engineer concern and every time keep in good condition with marking number of lease/license and name of the pillar.

(4)

In addition to provisions in various rules, every mine owner shall maintain the record of production and dispatch of mineral and non-saleable mineral in separate registers in Form No. 6 and Form No. 7 respectively and shall maintain log book of all machines, record of consumption of explosives, electricity, fuel etc. and registers regarding labour attendance and payment of wages, regularly.

(5)

Every dealer shall maintain proper record of all reawnnas/transit passes/royalty receipts and bills etc. through which mineral is received, dispatched, processed or consumed in manufacturing. He shall also maintain log book of all machines, record of consumption of explosives, electricity, fuel etc and registers regarding attendance of personnal [skill or semi-skill or un-skill] employed and payment of wages, regularly. The dealer shall maintain all such particulars in the register in Form No. 8.

9.

Returns.

(1)

Every dealer shall submit Quarterly return to the Mining Engineer or Assistant Mining Engineer concern, about the production, purchases and dispatch of the minerals within seven days from the last day of the preceding quarter in Form No. 9:

Provided that Quarterly return may be filed with late fee of Rs. 100/- per day upto 15 days after the period as specified above.

Explanation. - For the purpose of these rules, the Quarter means First April to 30th June, First July to 30th September, First October to 31st December, and First January to 31st March.

(2)

The dealer shall furnish Annual returns for financial year in Form No. 10 to the Mining Engineer/Assistant Mining Engineer concerned before 1st June of next year:

Provided that Annual return may be filed with late fee of Rs. 100/- per day upto 30 days after the period as specified above.

(3)

Mining Engineer/Assistant Mining Engineer concerned shall assess the annual royalty financial year basis, payable by the dealer in the year for which return is filed and communicate to him by registered post before 30th September or within sixty days from the date of submission of the return, whichever is earlier.

10.

Revision.

(1)

Any person aggrieved by an order of an authorized officer for a particular action under these rules, may within thirty (30) days from the date of communication of the order, prefer Revision in Form No. 11 to the State Government.

(2)

Every application for revision shall be accompanied with a non-refundable fee of Rs. 2000/- (Rupees Two Thousands Only) to be deposited under relevant Head of Account. The revision authority shall dispose off the revision within a period of three months from the date of its receipt.

(3)

The revision authority may condone the delay in filing of revision with reasons to be recorded in writing.

11.

Penalties.

- Whoever contravenes the provision of these rules, shall be punishable under the provisions of Section 21 of the Act.

12.

Rectification of mistake.

- Any clerical and arithmetic mistake in any order passed by the Government or any other officer under these rules and any error arising therein from accidental slip or omission may be corrected by the Government or officer as the case may be:

Provided that no order prejudicial to any person shall be passed unless he has given a reasonable opportunity of being heard.

13.

Rule 6 & 7 not to apply to minor minerals.

- Notwithstanding any thing contained in these Rules, in respect of minor minerals, the provisions of Rules 54 & 68 of the Minor Mineral Concession Rules 1986, related with illegal mining, storage and transportation shall be applicable in place of Rules 6 & 7 of these Rules.

Government of Rajasthan Mines & Geology Department

Form No. 1

[See Rule 4(1)]

(Application for Registration as a Dealer)

1. Name of applicant (in full) with father's name

[If an applicant is firm/company submit relevant information along with documents regarding name, father's name and addresses of partners/directors, and person holding powers of attorney to act on behalf of the firm/company]

2. details of Application Fee deposited

3. Full Address of place of business

4. Other place or places of business

5. Particulars regarding dealing of mineral/s, if any processing unit, give details/ [Enclose copy of project report duly approved or submitted in government department]

6. If registered with Industries Department, Sales Tax Department and any other government, department, please enclose copy of registration/s.

7. Submit duly sworn affidavit that no dues of mines department of any kind is outstanding against an applicant. [If any stay from competent court enclose copy of the stay order.]

8. Source for procurement of mineral/s

9. Particulars of material procured and stored

10. Financial status with details of person i.e. property, title or ownership, annual payment of Income Tax and any other relevant evidence regarding financial status.

11. Specific purpose (Processing/Storing/Selling/Trading/Transporting/any other purpose)

12. Name of Mineral/Ore

13. Name and address of persons/firms from whom the Mineral/Ores purchased/Procured.

Declaration

I/We declare that above information furnished by me/us are true and correct. I/We have read and understood all the provisions of the Rajasthan Minerals [Prevention of Illegal mining, transportation and Storage] Rules, 2006 and agree to abide by the same.

Date:Place:

Signature of the applicant

Government of Rajasthan Mines & Geology Department

Form No. 2

[See Rule 4(2)]

(Registration Certificate)

Received an application for registration as dealer from..... (Name of an applicant with address).....to the department on date for possessing/Storing/Selling/Trading of.....(Name of Mineral/Ore) with the following enclosures:-

(1)

(2)

(3)

(4)

(5)

(6)

On the basis of above, the applicant is hereby registered as dealer in Rajasthan Minerals [Prevention of illegal mining, transportation and storage] Rules 2006. The registration number allotted to the applicant is...../06.

Date:

Signature of Competent Authority with Seal

Government of Rajasthan Mines and Geology Department

Form No. 3

[See Rule 4(4)]

(Register of Application for registration to be maintained by the department)

S. No.

Date of receipt of application

Name of Applicant

Address of Applicant

Name of Mineral Ores

Place of Processing/ Storing/Selling/Trading

Registered as dealer vide order number and date

Quarterly Returns submitted on

Yearly Return Submitted on

Material Procured from

Material dispatched or consumed at places

Royalty assessment made and communicated to dealer on date

If revision, brief details of the same

1

2

3

4

5

6

7

8

9

10

11

12

13

Application for Transit Pass received

Transit pass issued on

Number of transit passes issued

Copy of Used Transit Passes returned to the department. Number of passes and date.

Annual Capacity of consuming mineral

Year-wise Detail of consumption of the mineral

Registration with Industries Department

Registration with sales tax department

Project report submitted by an applicant

Remarks if any

Signature of an authorized officer

14
15
16
17
18
19
20
21
22
23
24

Government of Rajasthan Mines and Geology Department

Form No. 4

[See Rule 4(1)]

(Application for issue of Transit Pass)

1

Name of the applicant with Father's name [In case of Firm or company, particulars of all partners/directors and enclose relevant document along with Power of Attorney of a person signing this application on behalf of firm/company]

2

Particulars of registration as dealer

3

Dealing or Profession

4

Complete Address

5

Name of Mineral

6

Source of mineral and Rawanna Challan/Royalty Receipt/Transit passes by which material procured.

7

Present stock

8

Destination to which transportation to be made.

9

Total quantity of mineral to be transported

10

Period in which mineral to be transported for quantity as shown in column 9

11

Purpose of transportation

12

Details of Transit passes issued earlier.

[Enclose Details]

13

Justification to get Transit passes

Declaration

I/We hereby declare that above information furnished by me/us are true. I/We have read and understood all the provisions of the Rajasthan Minerals (Prevention of Illegal Mining Transportation and Storage) Rules, 2006 and agree to abide by the same.

Date of application

Signature of Applicant

Place:

In Quadruplicate

Government of Rajasthan Mines and Geology Department

Form No. 5

[See Rule 4(3)]

(Transit Pass)

Transit

Pass

Book

No.....

Transit Pass/

S.No.....

1. Name and address of consigner (Holder of ML/Mineral dealer)

2. Name and address of consignee

3. Name of Mineral

4. Quantity (weight/volume)

5. Approximately value of Mineral being carried.

6. (a) Date and time of Dispatch

(b)

Place from which mineral is to be transported.

(c)

Destination to which mineral is being transported.

(d)

Number and details of Rawanna issued by the department indicating payment of I Royalty on mineral being transported.

7. (i) Mode of Transport

(ii)

Carrier Registration No.

8. Name and address of vehicle driver.

Signature with dateDriver

Signature with dateConsigner

Signature and Round Seal of Issuing Authority

Signature and designation of Checking Authority with Seal

Notes. - (1) No over writing should be done.

(2)

Second and third copy to the driver, to handover one copy to consignee and the original copy and the book with counter foil i.e. fourth copy has to be returned to the concerned authority after the book is exhausted. After check original copy be returned to dealer for their record and exhausted book will be kept in record of the department.

(3)

The vehicle driver shall carry two copies of the transit pass during transit.

Government of Rajasthan Mines and Geology Department

Form No. 6

[See Rule 8(4)]

(Particulars of Mineral/s Produced and Dispatched from Mines)

1. Name of Lessee/License and full address.....

2. Period of Lessee/License.....

3. Mineral/s

4. Location of Lessee/License

5. Name of the office in whose jurisdiction Lessee/License falls

[Quantity in Tonnes]

Date

Opening Balance of mineral

Mineral Produced
Total Quantity of mineral
Mineral Dispatched
Mineral Consumed
Particulars of dispatch, Rawanna or transit Pass Number & date
Quantity as per Rawanna or Transit Pass

1
2
3
4
5
6
7
8

Total Quantity of mineral dispatched or consumed
Closing balance
Number of Labour
Consumption of explosives
Consumption of electricity
Consumption of fuel
Remarks

9
10
11
12
13
14
15

Place:Date:

Signature of Lessee/License
Government of Rajasthan Mines and Geology Department
FORM No. 7

[See Rule 8(4)]

(Particulars of Overburden or Sub-Grade Mineral Produced and Disposed)

1. Name of Lessee/License and full address
2. Period of Lessee/License
3. Mineral/s
4. Location of Lessee/License
5. Name of the office in whose jurisdiction Lessee/License falls

A. Particulars of Overburden

Date

Opening Balance of Overburden

Overburden Produced

Total Quantity of Overburden

Overburden Dispatched/ Consumed/Disposed

Location of Overburden Dispatched/Consumed/
Disposed

Closing Balance

Purpose in which the overburden is utilized
with quantity

Remarks

Purpose

Quantity

1

2

3

4

5

6

7

8

9

10

B. Particulars of Sub Grade Mineral if produced

Date

Opening Balance of Sub-grade mineral

Sub-grade mineral Produced

Total Quantity Sub-grade mineral

Sub-grade mineral Dispatched/consumed/disposed

Location of Sub-grade mineral Dispatched/Consumed/

Disposed

Closing Balance

1

2

3

4

5

6

7

Purpose in which the overburden is utilized

with quantity

Remarks

Number of Labour

Consumption of explosives

Consumption of electricity

Consumption of fuel

Other consumables

Purpose

Quantity

8

9

10

11

12

13

14

15

Place:Date:

Signature Lessee/License

Government of Rajasthan Mines and Geology Department

Form No. 8

[See Rule 8(5)]

(Account of Ores/minerals)

(To be maintained by the dealer daily/regularly)

1. Name of the dealer

:

2. Full address

:

3. Registration number

:

4. Name of Mineral/Ore

:

5. Place of Business

:

6. Name of Offices under whose jurisdiction the Mineral/Ore is stored or processed AME/ME/SME

:

7. Particulars of total Rawanna/Transit Pass/Royalty receipts issued with dates & S.No.

:

Quantity in tonnes

Name of Month & Year

Date

Opening balance of mineral/ore

Quantity of ore/mineral received

Source of receipt with Rawanna/Transit

Pass/royalty receipt no & date

Total stock of Ore/Mineral

Quantity of Ores/Minerals consumed sold/dispatched

Details of dispatches with T.P. Nos. and date

1

2

3

4

5

6

7

8

Closing balance of Ore/Mineral at the store or factory site.

Place/s where mineral/consumed/sold/ dispatched

Number of Labour

Consumption of electricity

Consumption of fuel

Other consumables, if any

Remarks

9

10

11

12

13

14

15

Signature of the Dealer

Government of Rajasthan Mines and Geology Department

From No. 9

(Quarterly Return by the Dealer to the department [ME/AME concern])

[See Rule 9(1)]

Quarter.....

1. Name of the Dealer

:

2. Full Address

3. No. and date of Registration

:

4. Name of Mineral and Ore

:

5. Name of the Plant/Factory

:

6. Postal address of the Factory

:

7. Quarterly capacity of Plant/Factory

:

8. Name of Mining Offices having jurisdiction

over the factory plant, AME/ME/SME

:

Opening Balance of Mineral/Ore

Quantity of Mineral/Ore received.

Source of procurement

Particulars of royalty payment

Total material [1+2]

Grade of Mineral/s

Quantity of Ore/Mineral fed to the plant

Quantity of Ore/mineral dispatched

Balance Stock 4 - [6+7]

1

2

3

4

5

6

7

8

9

Quantity of Ore/Mineral recovered after
process

Closing balance of Ore/Mineral at the
plant/Crude and processed

Number of Working days

Average number of labour per day

Consumption of electricity

Consumption of fuel

Other Consumables, if any

Remarks

10
11
12
13
14
15
16
17

Signature of the Licensee

Date

Copy to:

The Director, Mines and Geology Department, Uadipur

The Additional Director, Mines and Geology Department,

The Superintending Mining Engineer, Mines and Geology Department,

.....

Signature of the Licensee

Government of Rajasthan Mines and Geology Department

From No. 10

(Annual Return by the Dealer to the department [ME/AME concern])

[See Rule 9(2)1

Year.....

1. Name of the Dealer

:

2. Full Address

3. No. and date of Registration

:

4. Name of Mineral and Ore

:

5. Name of the Plant/Factory

:

6. Postal address of the Factory

:

7. Quarterly capacity of Plant/Factory

:

8. Name of Mining Offices having jurisdiction

over the factory plant, AME/ME/SME

:

Opening Balance of Mineral/Ore

Quantity of Mineral/Ore received.

Source of procurement

Particulars of royalty payment

Total material [1+3]

Grade of Mineral/s

Quantity of Ore/Mineral fed to the plant

Quantity of Ore/mineral dispatched

Balance Stock 4 - [6+7]

1
2
3
4

5
6
7
8
9

Quantity of Ore/Mineral recovered after
beneficiation

Closing balance of Ore/Mineral at the
plant/Crude and beneficiation

Number of Working days

Average number of labour per day

Consumption of electricity

Consumption of fuel

Other Consumables, if any

Remarks

10
11
12
13
14
15
16
17

Signature of the Licensee

Date Copy to:

The Director, Mines and Geology Department, Uadipur

The Additional Director, Mines and Geology Department,

The Superintending Mining Engineer, Mines and Geology Department

.....

Signature of the Licensee

Government Rajasthan Mines and Geology Department

Form No. 11

[See Rule 10(1)]

(Application for Revision)

1. Name of the Applicant

2. Address

3. Father's name (in case of firm/company name and addresses of partners/directors and person holding power of attorney to act on behalf of the firm/company.)

4. Particulars of fee deposited

5. No. and date of order against which application is filed.

6. Ground of revision.

7. In case of revision preferred after 30 days of order, the reasons of delay

8. Whether the applicant desires to be heard in person or through pleader.

9. Any additional information desired to furnish.

Date:

Signature of the applicant

Related AI tags, queries and research notes

Translation